

The Assam Compensatory Afforestation Fund Rules, 1994

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[Notification No. FRS, 367/86/153. - The Governor of Assam is pleased to constitute a Fund for the purpose of Compensatory Afforestation to be raised against the Forest Area diverted for non-forest use under the provisions of Section 4\(1\) of the Forest \(Conservation\) Act, 1980 and to make the following rules for regulating the operation of the said fund in the manner hereinafter appearing namely:](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

These rules may be called "The Assam Compensatory Afforestation Fund Rules, 1994.

(2)

They shall extend to the whole of the State of Assam.

(3)

They shall come into force with effect from the date of their publication."

2.

Definitions.

- In these rules, unless there is anything repugnant to the subject or context-

(a)

"Fund" means the Assam Compensatory Afforestation Fund ;

(b)

"State" means the State of Assam ;

(c)

"Government" means the Government of Assam in the Forest Department ;

(d)

"User Agency" means the Agency permitted by the Government to use the forest land for non-forest purpose;

(e)

"Nodal Officer" means the officer designated as such by the Government who shall be an officer of the rank of the Conservator of Forest.

3.

Constitution of the Fund.

- There shall be constituted a fund to be called "The Assam Compensatory Afforestation Fund, in the Public Account of the State under the head of Account "J-Reserve Fund (b) Reserve Funds not bearing Interest 8235-General and Other Reserve Funds-200-Other Fund-Fund for Compensatory Afforestation" and the money realised from the User Agencies shall be deposited into the Fund.

4.

Administration of the Fund.

(1)

The Fund shall be administered by the Nodal Officer.

(2)

The Nodal Officer shall receive the money from the User Agency and deposit the same into the relevant receipt head "0406-Forestry and Wildlife -800-Other receipts-receipts under Compensatory Afforestation" through Treasury Chilean.

(3)

In order to enable the transfer of the total amount of revenue received under Compensatory Afforestation, necessary budget provision under the head "2406-Forestry and Wildlife-01-Forestry-800-Other Expenditure (h) Compensatory Afforestation" shall be made. Thereafter the amount shall be transferred to the Compensatory Afforestation Fund as "901 - Deduct amount met from 8235-General and Other Reserve Fund-Funds for Compensatory Afforestation."

(4)

The Nodal Officer shall draw money out of the Fund against proper sanction and disburse the amount to the Divisional Forest Officers concerned assigned with the work of Compensatory Afforestation.

(5)

The concerned Divisional Forest Officers shall submit a separate monthly account to the Nodal Officer who shall compile all such accounts received from Divisional Forest Officers and forward the compiled monthly account of the Fund to the Accountant General, Assam and to the Government.

(6)

In all financial matters, the rule contained in the Assam Financial Rules and the Government Orders in force for the time being, if any, shall apply.

5.

Audit of the Fund.

- The Fund shall be subject to audit by the Accountant General Assam during the course of their routine audit of the Office of the Conservator of Forests as special agenda item.

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